

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
ROMY SYLLAS and STEPHAN FONTIN,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:

POLICE OFFICER MICHAEL ZWEIFLER, Shield No.
14406, and POLICE OFFICERS JOHN DOE 1-10,

Location of Incident

Defendants.

Plaintiff designates KINGS
County as the place of trial.----- X
To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 1, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.

CAITLIN ROBIN & ASSOCIATES PLLC

Attorneys for Plaintiff

30 Broad Street, Suite 702

New York, New York 10004

(646)-524-6026

TO: POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, NYPD 79th Precinct, 263
Thompkins, Brooklyn, New York 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

ROMY SYLLAS and STEPHAN FONTIN,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

POLICE OFFICER MICHAEL ZWEIFLER, Shield No.
14406, and POLICE OFFICERS JOHN DOE 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs ROMY SYLLAS and STEPHAN FONTIN by their attorneys, Caitlin Robin & Associates, PLLC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On March 14, 2020, at approximately 8:00 p.m., Plaintiffs ROMY SYLLAS and STEPHAN FONTIN were subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of Throop Avenue and Willoughby Avenue in Brooklyn, New York. Plaintiffs both spent approximately twenty hours unlawfully in police custody. Thereafter, the Defendant police officers denied Plaintiff the right to a fair trial by forwarding false information to the Kings County District Attorney's Office, which caused a parole hold to drop on Plaintiff Syllas, and Plaintiff Syllas to remain unlawfully incarcerated until April 9, 2021. All criminal charges in relation to this unlawful arrest were dismissed and sealed against Plaintiffs on or about May 28, 2020. Plaintiffs were deprived of their constitutional rights when the individual Defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the Plaintiffs the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff ROMY SYLLAS is a resident of the State of New York.
3. Plaintiff STEPHAN FONTIN is resident of the State of New York.

4. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

5. On the date of the subject incident POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, was assigned to the 90th Precinct.

6. POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, is being sued in his individual and official capacities.

7. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

8. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. At all times relevant hereto, Defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

1. On March 14, 2020, at approximately 8:00 p.m., Plaintiffs was lawfully present in the vicinity of Throop Avenue and Willoughby Avenue in Brooklyn, New York, when the Defendant police officers unlawfully stopped Plaintiffs without reasonable suspicion or probable cause.

2. Plaintiff Stephan Fontin was sitting in the backseat of a car in the vicinity of Willoughby Avenue and Throop Avenue.

3. Defendant Police Officers performed a car stop on the vehicle that Plaintiff Fontin was in, without probable cause or reasonable suspicion.

4. Plaintiff Syllas, who knows Plaintiff Fontin, happened to be walking by the car, and started recording on his cell phone.

5. Plaintiff Syllas was recording a police interaction from his cell phone from a safe distance away.

6. The Defendant Officers told Plaintiff Syllas to back up, which Plaintiff complied.

7. The Defendant Officers then approached Plaintiff, grabbed Plaintiff Syllas, threw him to the ground, and unlawfully handcuffed him.

8. Plaintiff Fontin then exited the vehicle and started recording the Defendant Officers arresting Plaintiff Syllas.

9. The Defendant Officers then grabbed Plaintiff Fontin, threw him to the ground, and arrested him also.

10. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

11. The Defendant police officers refused to tell the Plaintiffs why they were being detained and arrested.

12. The Defendant Officers searched both Plaintiffs and found no contraband or anything illegal on them.

13. At no point in time did Plaintiffs resist arrest in any way.

14. The Defendant police officers then unlawfully placed Plaintiffs under arrest and transported them to the NYPD 79th Precinct.

15. At the NYPD 79th precinct, Plaintiffs were fingerprinted, photographed, and unlawfully detained in a holding cell.

16. Plaintiffs were then transported from the NYPD 79th Precinct to Kings County Central Booking.

17. The Defendant Officers falsely stated to the Kings County District Attorney's Office that Plaintiffs had committed the crime of Obstructing Governmental Administration despite knowing that they lacked a legal and factual basis to allege that Plaintiffs committed any crime.

18. On March 15, 2020, after approximately 20 hours unlawfully in police custody, Plaintiffs were arraigned in Kings County Criminal Court and charged with crimes that the defendant officers had no basis to allege that he committed.

19. At arraignment, Plaintiff Fontin was released on his own recognizance, and told to come back to Court.

20. At arraignment, a parole violation hold dropped on Plaintiff Syllas because of the unlawful arrest, which remanded Plaintiff to Rikers Island.

21. After multiple Criminal Court appearances, all criminal charges were dismissed and sealed against both Plaintiffs on or about May 28, 2020.

22. The Parole Violation on Plaintiff Syllas did not expire until on or about April 9, 2021, thus Plaintiff Syllas was unlawfully incarcerated approximately 12 months based on this false arrest.

23. Some of the police officer Defendants observed the violation of Plaintiffs rights under the Constitution of the United States and New York State Law and did nothing to prevent the Plaintiffs from being subjected to an unjustifiable stop, question, frisk, search, seizure, false arrest, and denial of fair trial.

24. The unlawful stop, question, frisk, search, false arrest, false imprisonment, and unlawful seizure by the Defendant police officer caused Plaintiff to sustain physical, psychological, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

25. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth at length herein.

26. The individually named police officer Defendants while acting in concert and within the scope of their authority, caused Plaintiffs to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of their due process rights in violation of plaintiffs' right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

27. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.

28. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs was conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

29. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

30. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

31. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

32. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

33. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The illegal approach, pursuit, stop, questioning and frisk employed by Defendants herein terminated Plaintiffs freedom of movement through means intentionally applied.

35. The conduct of Defendants in stopping, frisking, and searching Plaintiffs were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

36. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the United States Constitution

37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

38. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

39. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

40. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal approach, pursuit, stop and search of Plaintiffs employed by Defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

42. Defendants lacked probable cause to search Plaintiffs.

43. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

45. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

46. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

47. The Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein

48. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

49. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

50. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

51. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

52. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of their constitutional rights.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, economic, emotional, and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

56. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 55 with the same force and effect as if more fully set forth at length herein.

57. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

58. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

59. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

61. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, economic, emotional, and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

63. The Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

65. As a result of the aforementioned conduct of Defendants, Plaintiffs sustained injuries including, but not limited to: physical, emotional, and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

66. The Plaintiffs repeat, reiterate, and reallege, each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. The Defendants that did not physically touch Plaintiffs, but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they were put in fear of their safety, they were humiliated, and subject to other physical constraints.

70. As a direct and proximate result of such acts, Defendants deprived Plaintiffs of their rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: physical, economic, emotional, and psychological injuries.

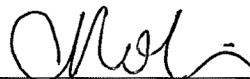
JURY DEMAND

74. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs ROMY SYLLAS and STEPHAN FONTIN demand judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 1, 2021

By: 

CAITLIN ROBIN & ASSOCIATES PLLC
CAITLIN ROBIN, ESQ.
Attorneys for Plaintiff
30 Broad Street, Suite 702
New York, New York 10004

(646)-524-6026

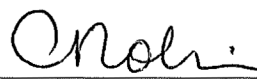
TO: POLICE OFFICER MICHAEL ZWEIFLER, Shield No. 14406, NYPD 79th Precinct, 263
Thompkins, Brooklyn, New York 11216

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because the plaintiffs do not reside in the county wherein I maintain my office.

DATED: New York, New York
June 1, 2021



CAITLIN ROBIN, ESQ.